

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED; AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 25-31

Served: February 5, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER GRANTING JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER

On February 4, 2026, the parties submitted a Joint Motion for Entry of Protective Order (“JMEPO”), with a proposed protective order attached. The parties state that “a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” JMEPO at 1 (footnote omitted).

The Initial Order that applies to this proceeding was issued in Docket 25-02, and a copy has been placed in the docket of this proceeding, as well. The Initial Order states that, “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5. The Initial Order also states that when confidential information is used in the proceeding, it must be accompanied by a motion that justifies confidential treatment. “This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1).” *Id.*

Accordingly, the parties have established good cause to enter a protective order, and to the extent that the parties’ proposed protective order complies with the terms of the Initial Order and the Commission’s Rules, the JMEPO is **GRANTED**. The Protective Order is **ENTERED AS MODIFIED** to comply with paragraphs 21-27 of the Initial Order, and to comply with motion filing dates found in the Commission’s Rules or ordered by the Presiding Officer. 46 C.F.R. § 502.71.

The parties are reminded that depositions may not be marked confidential in their entirety, and confidential material should be marked in a method consistent with the instructions in paragraph 24. Initial Order at 5-6. Personally identifiable information (“PII”) is defined in Commission Rule 13 and must be redacted; adult names, job titles, and work email addresses are

not PII or confidential information pursuant to the Commission Rules. 46 C.F.R. § 502.13; Initial Order at 6.



Linda S. Harris Crovella
Administrative Law Judge